

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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Date: September 24, 2026

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1.	Torres v. Nissan North America, Inc. 25-1466350	Before the court is the unopposed Motion to be Relieved as Counsel of Record, filed by attorney Mani Arabi of Strategic Legal Practices, APC as to the representation of plaintiff Isabel C. Torres. The motion is DENIED without prejudice. <i>California Rule of Court, rule 3.1362(d)</i> provides, "[t]he notice of motion and motion, the declaration, and the proposed order must be

		served on the client and on all other parties who have appeared in the case.” Here, there is no proof of service showing service of the moving papers on the client. The motion is therefore DENIED, without prejudice. <i>Moving counsel is ordered to give notice of this ruling.</i>
2.	Yoon v. Ross Stores, Inc. 25-1538080	Before the court is an unopposed motion filed by attorney Brian W. Lee requesting to be relieved as counsel of record for plaintiff Jung Ho Yoon (“Client”). The motion is DENIED without prejudice. <i>California Rule of Court, rule 3.1362(d)</i> provides, “[t]he notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.” There is no proof of service showing service of the moving papers on either the client or opposing counsel. As such, counsel has failed to comply with <i>Rule 3.1362(d)</i>. The motion is therefore DENIED, without prejudice. The Court also notes that in the caption of the Motion (ROA 30) Lee states that he is counsel for “Judy Cho an individual aka Yoon Jeon.” However, in the body of the motion, he states that he is seeking to be relieved as counsel for “Jung Ho Yoon.” Any future motion should correct this inconsistency. <i>Mr. Lee is ordered to give notice of this ruling and to file the proof of service with the Court.</i>
3.	Bravo v. Nissan North America, Inc. 25-1471170	The unopposed Motion to be Relieved as Counsel of Record, filed by attorney Mani Arabi of Strategic Legal Practices, APC as to the representation of plaintiff Salomon Bustos Bravo is GRANTED. The Court finds the motion, declaration and proposed order comply with <i>Rule 3.1662</i>. The Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client. <i>Moving counsel is ordered to give notice of this ruling.</i>
4.	Cicale v. LoanDepot.com, LLC 26-1544409	Before the Court is the unopposed application of attorney Erin Tuck to appear in this matter <i>pro hac vice</i> as counsel for plaintiffs. Moving counsel has complied with the requirements set forth in <i>California Rules of Court, Rule 9.40</i>. Accordingly, the application is GRANTED. <i>Counsel for plaintiffs is ordered to give notice of this ruling.</i>
5.	Kammoun v. Bali 26-1564261	Plaintiff Hela Kammoun’s motion for leave to file a second amended complaint is DENIED without prejudice. The motion fails to comply with the requirements of <i>California Rules of Court, rule 3.1324</i>, including submissions of a proposed amended pleading and a separate declaration containing the requisite information. (<i>Cal. Rules of Court, rule 3.1324(a),(b).</i>) <i>Plaintiff shall give notice of this ruling.</i>

6.	Doe v. Irvine Unified School District 25-1487477	Before the court is a motion to disqualify 'John ZN Doe' ("Father") from performing as guardian ad litem ("GAL") in this matter. The court has considered the arguments and orders the parties, including Father, to appear at the hearing to discuss the issues. Importantly, the parties are to discuss other potential GAL should the court eventually find Father cannot remain in that position. To be clear, the court at this time has not determined whether Father can remain as GAL, but instead the court needs additional information on other potential options to make an informed determination as to what would be in the plaintiff's best interests.
7.	Keno Capital, LLC v. Oakleaf Holding LLC 23-1313683	(Withdrawn)
8.	Li v. Li 25-1517999	Defendant/Cross-Complainant Xian Li's ("Defendant") unopposed Motion to Request Plaintiff Furnish a Security ("Motion") is DENIED. Defendant moves to require pro per plaintiff Jun Li ("Plaintiff") to furnish a security pursuant to <i>Corp. Code § 17709.02</i>. Under that code section an action must be brought on behalf of a corporate entity, must have no reasonable possibility the action will benefit the company or its members, and the present motion cannot be brought by an individual who participated in the alleged wrongdoing. Here, Plaintiff's complaint is brought solely by Plaintiff against Defendant. No corporate entity is a party in the complaint. While the cross-complaint adds StarRide Auto Services, LLC, as a cross-complainant in this action, that is not enough to require a plaintiff suing an individual to furnish a security. Further, the sole cause of action in the complaint is one for declaratory relief seeking to have Defendant's allegedly improper filings with the California Secretary of State, which removed Plaintiff as a member/manager, be changed back to the original filing. Defendant has not shown this is a derivative action, versus a direct action, meant to benefit the company and not Plaintiff. (<i>Jones v. H. F. Ahmanson & Co.</i> (1969) 1 Cal. 3d 93, 106-07.) Additionally, the allegations of wrongdoing are against Defendant, which would make Defendant an improper party to bring the present motion. (<i>Corp. Code § 17709.02(b)(2)</i>.) As Defendant have not met his burden, the motion is DENIED. <i>Counsel for Defendant is ordered to serve notice of the ruling</i>
9.	La Pay v. Lubin Pham + Caplin LLP 26-1561006	Defendants Lubin Pham + Caplin LLP, Namson N. Pham, Nicholas J. Caplin and JC Chimoures' unopposed motion to compel arbitration and stay action is GRANTED. Defendants met their burden to show a written arbitration agreement exists that covers plaintiff's claims in this action. (<i>Code Civ. Proc., § 1281.2; Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565 [burden]; Declaration of Inna Nytochka, Ex. A at ¶ 7, Ex. B at ¶ 7.) By failing to

		oppose the motion, Plaintiff did not meet her burden of proving any fact necessary to its defense. This action is stayed pending completion of arbitration. (<i>Code Civ. Proc.</i>, § 1281.4.) <i>Counsel for Defendants shall provide notice of this ruling.</i>
10.	Conlisk v. Montelongo 25-1487772	Before the Court is a motion to strike filed by defendants Joel Montelongo and Ghazal & Sons, Inc. dba All American Plastic & Packaging (Defendants) as to portions of the first amended complaint (FAC) of plaintiff Kristy L. Conlisk (Plaintiff). For the reasons set forth below, the motion is GRANTED with 10 days' leave to amend. The FAC alleges facts sufficient to show malice and/or conscious and deliberate disregard for the safety of others, but there are insufficient facts showing corporate liability including conduct by an officer, director or managing agent. (<i>Code of Civ. Proc.</i> § 436 [standard]; <i>Civ. Code</i> § 3294, subd. (b),(c)(1).) <i>Counsel for Defendants shall give notice of this ruling.</i>
11.	Hertzske v. Wood 26-1571720	(Continued)
12.	Doe v. Hawkeye Wrestling Club 23-1324446	The motion for summary judgment or, in the alternative, summary adjudication filed by defendant United States of America Wrestling Association (USA Wrestling) directed to the complaint of plaintiff John SKC Doe, by and through his guardian ad litem, Jane SKK Doe (Plaintiff) is DENIED. The party moving for summary judgment "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (<i>Food Safety Net Services v. Eco Safe Systems USA, Inc.</i> (2012) 209 Cal.App.4th 1118, 1124.) A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense thereto. (<i>Code Civ. Proc.</i>, § 437c(p)(2).) A defendant does not satisfy its burden of proof by producing evidence that does not exclude the possibility that plaintiffs may possess or may reasonably obtain evidence sufficient to establish their claim. (<i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442.) "There is no obligation on the opposing party ... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element ... necessary to sustain a judgment in his favor." (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468 (emphasis in original; internal quotes omitted).)

USA Wrestling failed to meet its initial burden. USA Wrestling's motion focuses on its alleged direct liability for failing to protect Plaintiff from the sexual abuse of defendant Daniel Mills (Mills). The complaint, however, also alleges a theory of vicarious liability against USA Wrestling based on the conduct of defendants Cliff Jarmie, Monica Serratos and Fernando Serratos, who are alleged to have enabled the abuse of Plaintiff. " '[A] principal who personally engages in no misconduct may be vicariously liable for the tortious act committed by an agent within the course and scope of the agency.' " (*Brown v. USA Taekwondo* (2019) 40 Cal.App.5th 1077, 1106.)

The complaint alleges Cliff Jarmie, Monica Serratos and Fernando Serratos are "the agents, representatives and/or employees" of USA Wrestling and all acts or omissions of said defendants as alleged in the complaint were within the course and scope of said agency, representation and/or employment. (Compl., ¶ 25.) Specifically, the complaint alleges these individual defendants knew of Mills' history of sexual misconduct, but they concealed this history and allowed Mills to coach minors, including Plaintiff. (Compl., ¶ 3.) The complaint further alleges when Plaintiff's parents informed Cliff Jarmie, Monica Serratos and Fernando Serratos of the abuse of Plaintiff, these individual defendants attempted to cover up the allegations and retaliated against Plaintiff by prohibiting him from returning to Hawkeye Wrestling Club (HWC) events. (Compl., ¶ 24.)

The pleadings serve as the "outer measure of materiality" in a summary judgment motion. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74—"the pleadings determine the scope of relevant issues on a summary judgment motion".)

Therefore, in order to obtain summary judgment, it was incumbent upon USA Wrestling to offer evidence and argument in its moving papers addressing all theories of liability alleged against them, including the theory that USA Wrestling is vicariously liable for the conduct of its alleged agents, Cliff Jarmie, Monica Serratos and Fernando Serratos. USA Wrestling failed to do so and thus failed to meet its initial burden on this motion. (*Hedayati v. Interinsurance Exchange of Automobile Club* (2021) 67 Cal.App.5th 833, 846—defendant who does not address an issue in its summary judgment motion that was raised in plaintiff's complaint fails to meet its initial burden of showing plaintiff's action has no merit.)

USA Wrestling did present evidence with its moving papers generally showing that USA Wrestling does not operate, manage, or control the day-to-day activities of local clubs like HWC. (See UMF 6-7.) This evidence, however, does not exclude the possibility that Plaintiff may possess or may reasonably obtain evidence sufficient to show that, in

		this instance, Cliff Jarmie, Monica Serratos and Fernando Serratos acted as agents of USA Wrestling in committing the acts complained of. In the absence of argument or evidence in the moving papers pertaining specifically to Cliff Jarmie, Monica Serratos and Fernando Serratos and specifically addressing USA Wrestling's relationship with these defendants, the court cannot find as a matter of law that these individuals were not agents of USA Wrestling and that USA Wrestling cannot be vicariously liable for their conduct. Accordingly, the motion is DENIED. Plaintiff's request for judicial notice is DENIED. (<i>Center for Community Action & Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].) The Court declines to rule on USA Wrestling's evidentiary objections as not material to the disposition of the motion. (<i>Code Civ. Proc.</i>, § 437c(q).) <i>Counsel for Plaintiff shall give notice.</i>
13.	Randall v. Morena 21-1193717	Before the Court is the Motion for Summary Judgment, or in the Alternative, for Summary Adjudication, filed on 12/18/25 by Defendants Farzin Morena and Jai Ho Capital ("Defendants"). The Motion is DENIED, as it fails to show that the claims presented by Plaintiff Paul Randall ("Plaintiff") in his Second Amended Complaint ("SAC") are necessarily barred as a matter of law. Defendants assert that Plaintiff's claims are time-barred, as the evidence shows that they accrued by no later than July 2018. (UF 22-26.) But Defendants have not shown that this is so as to the Fifth Cause of Action, for Conversion. Summary Judgment thus cannot be obtained here, based on limitations arguments. Nor have Defendants shown that the claims would be time-barred to the extent that they concern Plaintiff's alleged collateral, which is addressed in each claim in the SAC. Summary adjudication is available only if it completely disposes of a cause of action, affirmative defense, claim for damages, or issue of duty. (<i>C.C.P.</i> § 437c(f)(1).) That is not shown here. Defendants also assert that all claims in the SAC are barred based on illegality. Illegal contracts are unenforceable. (<i>Homami v. Iranzadi</i> (1989) 211 Cal.App.3d 1104, 1111-1113.) But although the alleged oral agreement concerning the check may have been designed for unlawful purposes such as tax evasion and/or money laundering, that has not yet been established. Defendants deny that any such agreement existed (UF 12-18), and Plaintiff has not conceded such intent (UF 30). Defendants also have not attempted to show that there was illegality regarding the claims as to the alleged collateral.

		Defendants also argue, as to the First Cause of Action, that there is no enforceable oral contract alleged as Plaintiff lacks standing to assert a claim as to funds paid to Defendants from a third party. But Plaintiff asserts that those funds were actually his and were directed to Defendants to pay an existing debt. (See UF 20, 30.) In that event, standing would be shown. Defendants also argue that the alleged oral agreement lacked consideration. But Plaintiff asserts that the oral agreement was, at least in part, a negotiated agreement to pay an existing debt. (UF 20.) Lack of consideration is thus not necessarily established here. The Motion is therefore DENIED. The Requests for Judicial Notice, filed as ROAs 464 and 543, are GRANTED as to the existence of the records, but not as to the truth of any disputed fact asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Defendants' Evidentiary Objections, filed as ROA 560, to the extent directed to material evidence, are OVERRULED. (C.C.P. § 437c(q).) Defendants are to give notice of this ruling
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